CASE REPORT

Case Title: Sri Krishna A & Ors v. State of Karnataka & Mandya District Kurubara Sangha

Case Number: W.P.No. 11234/2026

Case Type: Writ Petition

Court / Jurisdiction: Honble High Court of Karnataka

State: Not specified

Status: ONGOING

Priority: HIGH

Date of Generation: 25 October 2026

Filing Date: Not specified

PARTIES

- Sri Krishna A & Ors — Petitioner (person)
- State of Karnataka — Respondent No.1 (organization)
- Mandya District Kurubara Sangha (Regd.) — Respondent No.2 (organization)

SECTION 1: EXECUTIVE CASE SUMMARY & FACTUAL MATRIX

IN THE HIGH COURT OF KARNATAKA AT BENGALURU WRIT PETITION No. _____ / 2026 (GM-RES) SRI KRISHNA A, S/O LATE ANJANAPPA, AGED ABOUT 52 YEARS, RESIDING AT NO. 14, 3RD CROSS, VIDYANAGARA EXTENSION, MANDYA TOWN, MANDYA DISTRICT - 571 401. ... PETITIONER 1 SMT. BHAGYAMMA, W/O SRI MALLIKARJUNA, AGED ABOUT 48 YEARS, MANDYA. ... PETITIONER 2 (COLLECTIVELY CALLED "PETITIONER-MEMBERS OF THE SANGHA") -V E R S U S- 1. STATE OF KARNATAKA, DEPARTMENT OF CO-OPERATION, VIDHANA SOUDHA, BENGALURU - 560 001. 2. THE MANDYA DISTRICT KURUBARA SANGHA (REGD.), REGD. NO. MY-MDY-02-1987, REPRESENTED BY ITS WORKING PRESIDENT, SRI DEVARAJU, AGED ABOUT 58 YEARS, S/O LATE HANUMANTHAPPA, NO. 27, B.M. ROAD, NEAR GOVINDA…

Key Points:

- IN THE HIGH COURT OF KARNATAKA AT BENGALURU WRIT PETITION No. _____ / 2026 (GM-RES) SRI KRISHNA A, S/O LATE ANJANAPPA, AGED ABOUT 52 YEARS, RESIDING AT NO. 14, 3RD CROSS, VIDYANAGARA EXTENSION, MANDYA TOWN, MANDYA…
- NO. MY-MDY-02-1987, REPRESENTED BY ITS WORKING PRESIDENT, SRI DEVARAJU, AGED ABOUT 58 YEARS, S/O LATE HANUMANTHAPPA, NO. 27, B.M. ROAD, NEAR GOVINDA SWAMY TEMPLE, MANDYA TOWN - 571 401. ...RESPONDENTS JURISDICTION:…
- WRIT PETITION — SYNOPSIS OF FACTS 1. The 2nd Respondent ("the Sangha") is a society registered under the Karnataka Societies Registration Act, 1960 (for short "the 1960 Act") bearing Registration No. MY-MDY-02-1987…
- 2. The Petitioners are life-members of the Sangha, having been enrolled on the membership rolls in or about the year 1998.
- 5. The Ad-hoc Committee so appointed was headed by Sri H. Yashodharappa as Convener.
- The terms of the Order dated 28.08.2024 did NOT, by express recital, confer any power on the Ad-hoc body to amend the bye-laws or to convene an Annual General Meeting for that purpose.

SECTION 2: CHRONOLOGICAL DOCUMENT TIMELINE

Date	Event	Evidentiary Excerpt	Source
05.01.2026	11. On 05.01.2026 the 2nd Respondent Sangha, thro…	11. On 05.01.2026 the 2nd Respondent Sangha, thro…	Doc (Page 5)
10.11.2024	6. On 10.11.2024 the Ad-hoc Committee issued a Ci…	6. On 10.11.2024 the Ad-hoc Committee issued a Ci…	Doc (Page 3)
10.11.2024	6. On 10.11.2024 the Ad-hoc Committee issued a Ci…	6. On 10.11.2024 the Ad-hoc Committee issued a Ci…	Doc (Page 3)
12.04.1987	WRIT PETITION — SYNOPSIS OF FACTS 1. The 2nd Resp…	WRIT PETITION — SYNOPSIS OF FACTS 1. The 2nd Resp…	Doc (Page 2)
14.07.2024	The term of the outgoing committee came to an end…	The term of the outgoing committee came to an end…	Doc (Page 2)
15.12.2025	The notice published for the said AGM on the Sang…	The notice published for the said AGM on the Sang…	Doc (Page 4)
19.01.2026	12. By an Order dated 19.01.2026 the District Reg…	12. By an Order dated 19.01.2026 the District Reg…	Doc (Page 5)
24.12.2025	The Petitioners came to know of the proposals onl…	The Petitioners came to know of the proposals onl…	Doc (Page 3)
28.08.2024	The term of the outgoing committee came to an end…	The term of the outgoing committee came to an end…	Doc (Page 2)
28.08.2024	The terms of the Order dated 28.08.2024 did NOT, …	The terms of the Order dated 28.08.2024 did NOT, …	Doc (Page 3)
28.12.2025	8. On 28.12.2025 the Ad-hoc Committee purportedly…	8. On 28.12.2025 the Ad-hoc Committee purportedly…	Doc (Page 4)
28.12.2025	8. On 28.12.2025 the Ad-hoc Committee purportedly…	8. On 28.12.2025 the Ad-hoc Committee purportedly…	Doc (Page 4)

SECTION 3: EXTRACTED LEGAL ENTITIES

Case Parties

- Sri Krishna A & Ors — Petitioner (person)
- State of Karnataka — Respondent No.1 (organization)
- Mandya District Kurubara Sangha (Regd.) — Respondent No.2 (organization)

Statutes

- OTHER Section 8(1) (mentions: 1)
- OTHER Section 12(1) (mentions: 1)
- OTHER Section 12(2) (mentions: 1)
- OTHER Section 25 (mentions: 1)
- OTHER Section 12 (mentions: 1)
- OTHER Section 26 (mentions: 1)
- OTHER Section 11(3) (mentions: 1)

Dates

- 12.04.1987 (mentions: 1)
- 14.07.2024 (mentions: 1)
- 28.08.2024 (mentions: 1)
- 28.08.2024 (mentions: 1)
- 10.11.2024 (mentions: 1)
- 10.11.2024 (mentions: 1)
- 24.12.2025 (mentions: 1)
- 28.12.2025 (mentions: 1)
- 15.12.2025 (mentions: 1)
- 28.12.2025 (mentions: 1)
- 05.01.2026 (mentions: 1)
- 19.01.2026 (mentions: 1)

Persons

- Suresh Babu (mentions: 1)
- H. Yashodharappa (mentions: 1)

Amounts

- Rs. 500 (mentions: 1)
- Rs. 5,000 (mentions: 1)
- Rs.500 (mentions: 1)
- Rs.5,000 (mentions: 1)

SECTION 4: STATUTORY PROVISIONS & PENAL MAPPING

Code	Section	Label	Description	Equivalent
OTHER	8(1)	Karnataka Societies Registrat…	—	—
OTHER	12(1)	Karnataka Societies Registrat…	—	—
OTHER	12(2)	—	—	—
OTHER	25	—	—	—
OTHER	12	—	—	—
OTHER	26	Karnataka Societies Registrat…	—	—
OTHER	11(3)	Karnataka Societies Registrat…	—	—

SECTION 5: JUDICIAL PRECEDENTS & AUTHORITIES RELIED UPON

OTHER Section 8(1) — Karnataka Societies Registration Act, 1960
Relevance: 11. On 05.01.2026 the 2nd Respondent Sangha, through the Ad-hoc Committee, submitted an application to the District Registrar of Societies, Mandya, under Section 8(1) read with Section 12(1) of the Karnataka Societies Registration Act,…

OTHER Section 12(1) — Karnataka Societies Registration Act, 1960
Relevance: 11. On 05.01.2026 the 2nd Respondent Sangha, through the Ad-hoc Committee, submitted an application to the District Registrar of Societies, Mandya, under Section 8(1) read with Section 12(1) of the Karnataka Societies Registration Act,…

OTHER Section 12(2) —
Relevance: 12. By an Order dated 19.01.2026 the District Registrar, Mandya, registered the amended bye-laws under Section 12(2) of the 1960 Act without calling for any objections from the Petitioners or from dissenting members and without conducting…

OTHER Section 25 —
Relevance: 12. By an Order dated 19.01.2026 the District Registrar, Mandya, registered the amended bye-laws under Section 12(2) of the 1960 Act without calling for any objections from the Petitioners or from dissenting members and without conducting…

OTHER Section 12 —
Relevance: 11. On 05.01.2026 the 2nd Respondent Sangha, through the Ad-hoc Committee, submitted an application to the District Registrar of Societies, Mandya, under Section 8(1) read with Section 12(1) of the Karnataka Societies Registration Act,…

OTHER Section 26 — Karnataka Societies Registration Act, 1960
Relevance: An Ad-hoc body appointed under Section 26-A of the Karnataka Societies Registration Act, 1960 exercises only the power "to do acts necessary for the day to day management of the affairs of the society" pending election.

OTHER Section 11(3) — Karnataka Societies Registration Act, 1960
Relevance: GROUND II — Violation of Section 8(1) and Sections 11(3), 11(3A) of the Karnataka Societies Registration Act, 1960, and of Bye-law No. 27-A(iii) of the Sangha.

SECTION 6: ADVERSARIAL LEGAL ARGUMENTS

Grounds for Petitioner / Prosecution

1. Violation of OTHER Section 8(1)

Legal Ground: The impugned action is not saved by OTHER Section 8(1): the requirements of that provision have not been satisfied, so the action is legally unsustainable on the present record.

Procedural Violations:

- Disregard of the mandatory procedure prescribed by the statute
- Action taken without the objective satisfaction contemplated by law

2. Procedure established by law was not followed

Legal Ground: Procedural safeguards governing the present proceedings were bypassed — including prior notice, an opportunity of hearing, and a reasoned decision — rendering the action arbitrary and void.

Procedural Violations:

- No notice or opportunity of hearing was afforded before the adverse action
- Decision not supported by recorded reasons
- Designated statutory procedure was circumvented

3. No prima facie case / abuse of process

Legal Ground: The material on record does not disclose the ingredients of the acts alleged; permitting the present proceedings to continue would amount to an abuse of the process of the court.

Procedural Violations:

- Proceedings initiated without prima facie material
- Vague and vexatious allegations without corroboration

Rebuttals & Submissions for Respondent / Defense

1. Denial and traverse of the allegations

Defense Strategy: The core factual assertions are put in issue; the burden rests on the opposing party to prove each element on the balance of probabilities or beyond reasonable doubt, as applicable.

Counter-Arguments:

- The averments are contested and unproven
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- NO. MY-MDY-02-1987, REPRESENTED BY ITS WORKING PRESIDENT, SRI DEVARAJU, AGED ABOUT 58 YEARS, S/O LATE HANUMANTHAPPA, NO. 27, B.M. ROAD, NEAR GOVINDA SWAMY TEMPLE, MANDYA TOWN - 571 401. ...RESPONDENTS JURISDICTION:…

Mitigating Factors:

- Good-faith participation throughout the proceedings
- No prior adverse findings against the party

2. Statutory compliance and due-process defense

Defense Strategy: The actions complained of were taken strictly in accordance with the relevant statute and procedural regime applicable at the time.

Counter-Arguments:

- The petitioner has not demonstrated concrete prejudice
- An alternative statutory remedy was available and remains open

Mitigating Factors:

- Substantial compliance with the governing provisions
- Any irregularity is curable and non-prejudicial

SECTION 7: EVIDENCE STRENGTH & ADMISSIBILITY ASSESSMENT

Document Inventory

- ViewLetterDoc.pdf — Unknown type — 62 pages — Status: completed

Evidence Health Summary

Health Score: 76%
Total Grounds: 3
Total Rebuttals: 2
Documents Scored: 1

Document	Type	Score	Admissibility	Classification
ViewLetterDoc.pdf	—	76%	High	PRIMARY

Admissibility Justifications

ViewLetterDoc.pdf: Letter — treated as the submission's evidentiary basis. Official/governmental endorsement detected (registered/certified/sealed or primary public record).

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